

JUSTIFICATION AND APPROVAL (J&A) FOR USE OF OTHER
THAN FULL AND OPEN COMPETITION

1. Contracting Activity.

Department of the Navy, Military Sealift Command (MSC), Service Support Program (N103)

2. Description of the Action Being Approved.

The purpose of this J&A is to obtain approval to award a firm-fixed-price contract, N3220525P2052, on a sole source basis to U.S. Marine Management, LLC, for a 60-day tanker time charter for the U.S. flag vessel, MT SHENANDOAH TRADER. The period of performance for this contract action is from [REDACTED]. This time charter is necessary for the continued coverage of Consolidated Cargo (CONSOL) operations. This is a FAR Part 13.5 procurement and, therefore, it is exempt from Part 6 but still requires a written justification and approval per FAR Part 13.501(a)(2)(ii).

3. Description of the Supplies/Services.

The contract provides for one, U.S. flag, tanker vessel, that has certified CONSOL stations certified by NAVSEA-Port Hueneme Division under a MSC tanker time charter. It allows for worldwide use of the vessel to meet current and emergent missions.

Contract N3220525C4001 provides for the commercially operated U.S.-flag tanker MT SHENANDOAH TRADER to support Defense Logistics Agency-Energy fuel deliveries in the [REDACTED] for 150-days. The vessel was redirected [REDACTED] almost immediately to fulfill NAVCENT requirement for CONSOL operations and to serve as a CONSOL tanker. Her contract ends on [REDACTED].

This sole source procurement's sole purpose is for the continued coverage of CONSOL tanker operations. The total estimated value of this 60-day contract is \$6,840,000.00, which includes [REDACTED]
[REDACTED]

4. Statutory Authority Permitting Other Than Full and Open Competition.

41 U.S.C. § 1901(a)(2), as implemented by FAR 13.501 Special Documentation Requirements

5. Rationale Justifying Use of Cited Statutory Authority.

This J&A permits award of contract N3220525P2052 for services provided under FAR 13.501 for charter service contract.

MT SHENANDOAH TRADER is currently on a spot time charter to MSC and is currently enrolled in the Tanker Security Program (TSP) sponsored by the U.S. Maritime

Administration (MARAD). To be a participant in TSP, the vessels are required to install CONSOL stations that allows fuel to be passed to MSC's Combat Logistics Fleet (CLF). MT SHENANDOAH TRADER currently is the only TSP tanker with certified CONSOL stations that can be brought on hire to extend the logistics reach and capability of the Department of Defense (DoD) Global Fuel Enterprise.

Acquisitions conducted under simplified acquisition procedures are exempt from the requirements in FAR Part 6. However, sole source acquisition procedures must be conducted, and a justification must be prepared in accordance with FAR 13.501 and 41 U.S.C. § 1901. The extended-term chartered ice-class tanker, MT STENA POLARIS, whose main area of operation is [REDACTED] had been tasked to provide CONSOL support [REDACTED] starting in [REDACTED] when the vessel was scheduled to enter a regulatory dry-docking period. The MT SHENANDOAH TRADER is currently back filling the MT STENA POLARIS CONSOL missions in her absence. Naval component commander responsible for operations [REDACTED] requires continued need for continued CONSOL coverage until [REDACTED]. The loss of a CONSOL tanker [REDACTED], for even a short time, would greatly impact resupply operations in support of naval combatant operations [REDACTED]. [REDACTED] MT SHENANDOAH TRADER must be placed on a subsequent contract in order to mitigate disruption of CONSOL tanker coverage [REDACTED], however, the vessel's current contract runs out [REDACTED], and is scheduled to depart [REDACTED]. If this sole-source award is not conducted, then it will need to be competed, and due to the length of time it would take to compete this requirement, there would be an unacceptable gap in CONSOL services. Therefore, not conducting this unusual and compelling urgent sole-source acquisition would delay the mission and result in serious injury, financial or other, to the Government.

For the reasons above, MSC determined that the MT SHENANDOAH TRADER is the best, and only feasible option, to serve as the substitute vessel due to (1) the only available CONSOL tanker not currently on another MSC contract; (2) it is the only vessel will be able to readily load next parcels of fuel to effect timely arrival back [REDACTED]; and 3) it is the only vessel that avoids transit of hazardous choke points [REDACTED] in order to get to the operating area. As detailed in section 3, supra, this mission sustains continuous CONSOL coverage. For all the reasons above, the Government has an unusual and compelling urgency to award this requirement to the MT SHENANDOAH TRADER as the Government will suffer injury if it does not. Consequently, awarding the sole source follow-on time charter contract is the most expeditious and cost-effective acquisition strategy available to prevent mission failure.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

MSC, in conjunction with the NAVSEA Port Hueneme Division, arranges for the installation of CONSOL stations and eventual certification of CONSOL tankers. Currently there are a total of four TSP tankers that have CONSOL stations but only one tanker that is CONSOL certified, MT SHENANDOAH TRADER. MSC Tankers keeps track of all CONSOL tankers at its disposal.

The Agency has an unusual and compelling need that precludes full and open competition and justifies limiting sources sought to the current service provider since any delay in the award of a contract would result in serious injury to the national security interests of the United States.

This notwithstanding, the Contracting Officer, knew of no other U.S. flag tankers in the vicinity with required capability of CONSOL stations installed, which could have provided the needed service. The Contracting Officer consulted materials and other information relating to all known U.S. Flag tankers either capable of having CONSOL stations installed or having the required CONSOL stations and certifications in the area. Specifically, the contracting officer contacted knowledgeable individuals, reviewed the results of recent market research for similar or identical requirements, and obtained lists of similar services. The continued use of MT SHENANDOAH TRADER is in keeping in the spirit of Cargo Preference Laws.

This requested contract award is exempt from the synopsis requirement by FAR 5.202(a)(2) ("unusual and compelling urgency precludes competition to the maximum extent practicable") because the Government would be seriously injured if the agency complies with the time periods in FAR Part 5.203. Further, there is not enough time to complete a 30-day Simplified acquisition PALT to meet the required layday [REDACTED] in order to ensure mission is completed.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer signed below, has determined the anticipated cost to the Government of the services covered by this J&A will be fair and reasonable in accordance with FAR 13.106-3(a)(2)(i)-market research, FAR 13.106-3(a) (2) (ii)-comparison to prices found reasonable on previous purchases and FAR 13.106-3(a) (2) (vii)- any other reasonable basis.

8. Actions to Remove Barriers to Future Competition.

Due to the urgent nature of this requirement, time does not permit full-and-open competition. To the maximum extent practicable, MSC intends to continue to solicit and competitively award future charter requirements for tanker vessels supporting missions worldwide on a full-and-open basis, in the appropriate PALT time required to complete the actions.

CERTIFICATIONS AND APPROVAL**TECHNICAL/REQUIREMENTS CERTIFICATION**

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief. I certify that the supporting data that forms the basis for this justification is complete and accurate.

Technical/Requirements Cognizance.

[Redacted Signature Line]

Signature Name (Printed) Phone No. Date

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

[Redacted Signature Line]

Signature Name (Printed) Phone No. Date

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

[Redacted Signature Line]

Signature Name (Printed) Phone No. Date

DIRECTOR, CONTRACTS AND BUSINESS MANAGEMENT, MILITARY SEALIFT COMMAND

Upon the basis of the following justification, I, hereby approve, as Competition Advocate, Military Sealift Command, the contract action described herein using other than full and open completion, pursuant to the authority of 10 U.S.C. 2304(c)(1):

[Redacted Signature]

John Duenas, CAPT
Name (Printed)

757-341-2308
Phone No.

26 March 2025
Date